Mutual Non-Disclosure Agreement

Category: Non-Disclosure Agreement (NDA)

PARTIES	Northstar Analytics (fictional) and Cedar Labs (fictional)
EFFECTIVE / REFERENCE DATE	13 October 2026

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Background

The parties expect to discuss a possible software integration. During discussions, either party may share business, technical, financial, or product information. The parties want to set rules for handling that information before deciding whether to work together.

1. Definition of Confidential Information

"Confidential Information" means non-public information disclosed in any form that is marked confidential or that a reasonable recipient should understand to be confidential, including source code, architecture diagrams, customer lists, pricing, forecasts, security findings, and product roadmaps.

Information is not confidential if the recipient can show that it was already lawfully known, becomes public without breach, is independently developed without use of the disclosed information, or is lawfully received from a third party without a duty of confidence.

2. Permitted Purpose and Access

The recipient may use Confidential Information only to evaluate and discuss the proposed integration. Access is limited to employees and professional advisers who need the information for that purpose and are bound by confidentiality obligations.

The recipient must use reasonable safeguards. The agreement does not define a minimum security standard, encryption requirement, or incident-notification deadline.

3. Disclosure Required by Law

If disclosure is legally required, the recipient may disclose only the portion legally required and, where lawful, will give the disclosing party advance notice. The parties will reasonably cooperate on a protective order at the disclosing party's expense.

4. Term and Survival

This agreement begins on the Effective Date and continues for two years. Confidentiality obligations survive for five years after each disclosure; trade secrets remain protected for as long as they qualify as trade secrets under applicable law.

5. Return or Destruction

Within ten business days after written request, the recipient will return or destroy Confidential Information. One archival copy may be retained by legal counsel, and routine backups may remain until overwritten, provided they remain protected.

The clause does not specify how destruction will be certified or how long backups may remain.

6. Remedies and Liability

A party may seek injunctive relief for an actual or threatened breach. Neither party is liable for indirect or consequential loss under this agreement, except for fraud or wilful misconduct. The agreement does not set a monetary cap for direct damages arising from a confidentiality breach.

7. Governing Law and Disputes

The agreement is governed by the laws of the fictional State of Meridian. Courts located in Meridian City have exclusive jurisdiction, subject to any mandatory law that applies.

Signatures (sample only)

For Party A	For Party B
_____	_____
Name: _____	Name: _____
Date: _____	Date: _____